

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARY FRANCES YATES FIECHTER,

Petitioner

VS.

FREDERICK CHARLES FIECHTER IV,

Respondent

) Case Number: FDI-15-784320

) Hearing Date: May 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW HEARING FOLLOWING 10/22/25 ORDERS; ORDER TO SHOW CAUSE AND
AFFIDAVIT FOR CONTEMPT; AMENDED ORDER TO SHOW CAUSE AND AFFIDAVIT FOR
CONTEMPT

TENTATIVE RULING

I. Custody and Visitation

The parties are ordered to appear via Zoom or in person at 9am on 5/21/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

II. Order to Show Cause Re: Contempt

The parties are ordered to appear via Zoom or in person at 9am on 5/21/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

If Mother will be requesting appointment of contempt counsel, she shall be prepared to explain on the record under penalty of perjury: (a) what are her current sources of income, (b) what does

1 she have in cash savings, (c) what does she have in easily saleable investments, (d) what other assets
2 she may have, (d) what are her current debts.

- 3
4 1) On for hearing is the Order to Show Cause and Affidavit for Contempt filed 3/23/2026 filed by
5 minor's counsel Jill McInerney alleging that (a) Mother makes negative comments about Father
6 to Catherine and puts Catherine in the middle of the parents' disputes (in violation of the Findings
7 and Order After Hearing filed 8/25/2025); (b) Mother failed to ensure Catherine's attendance in
8 therapy (in violation of the Findings and Order After Hearing filed 10/22/2025); and (c) Mother
9 failed to make Catherine available for phone calls with her attorney on multiple occasions (in
10 violation of the Findings and Order After Hearing filed 10/22/2025).
- 11 2) On 3/23/2026, Mother filed a declaration in which she states that are no bases to support the
12 allegations set forth in Ms. McInerney's OSC Re: Contempt and accuses Ms. McInerney of
13 making material misrepresentations to Catherine and to the Court. Attached to Mother declaration
14 is a declaration purportedly written and signed by Catherine which includes the statement, "I am
15 submitting this declaration on my own because my Guardian Ad Litem Jill McInerney does not
16 accurately represent my words or interests before this court, and has repeatedly been dishonest in
17 her dealing with me. I do not trust her to communicate to this court on my behalf."
- 18 3) At the prior 3/24/2026 hearing, the Court continued the hearing on Ms. McInerney's OSC: Re
19 Contempt filed 3/23/2026 to 5/21/2026, to join a review hearing on custody and visitation set for
20 that same morning.
- 21 4) On 4/3/2026, minor's counsel Jill McInerney filed an Amended Order to Show Cause and
22 Affidavit for Contempt filed 4/3/2026. Ms. McInerney alleges the same contempt counts as set
23 forth in the OSC: Re Contempt filed 3/23/2026.
- 24 5) There is no Proof of Service on file evidencing service of Ms. McInerney Order to Show Cause
25 and Affidavit for Contempt filed 3/23/2026 (although the Court notes that Mother substantively
26 responded to this filing on 3/23/2026), nor is there a Proof of Service on file for Ms. McInerney's
27 Amended Order to Show Cause and Affidavit for Contempt filed 4/3/2026.
- 28 6) **The parties are ordered to appear. If Mother will be requesting appointment of contempt**
29 **counsel, she shall be prepared to explain on the record under penalty of perjury: (a) what**

are her current sources of income, (b) what does she have in cash savings, (c) what does she have in easily saleable investments, (d) what other assets she may have, (d) what are her current debts.